

WATTEN POWER LIMITED

Terms of Sale

Effective Date: 01 May 2025

Company Number: 17050993

Registered Office: Office 2, 60 Gold Street, Northampton, United Kingdom, NN1 1RS

These Terms of Sale ("Agreement") set out the legally binding terms that apply when you purchase products or installation services from Watten Power Limited ("Watten Power", "we", "us", "our"), whether through our website at www.wattenpower.com, by telephone, or via any other authorised channel.

Watten Power operates as a specialist supplier and installer of energy products manufactured by third-party companies ("Manufacturers"). We do not manufacture any of the products we sell. This is an important distinction: the products we supply carry Manufacturer Warranties issued and supported by the respective Manufacturer, while the installation services we provide are Watten Power's own responsibility. Both are addressed in full within these Terms.

By placing an order with Watten Power, you confirm that you have read and accept this Agreement. This Agreement applies to both consumers and business customers, with certain provisions applying exclusively to one group where indicated.

1. Key Definitions

The following terms carry the meanings assigned to them throughout this Agreement:

"Products" — solar panels, battery storage systems, EV charging equipment, inverters, cables, mounting systems, and associated accessories, all manufactured by third-party brands and supplied by Watten Power as an authorised reseller

"Installation Service" — the supply of labour, expertise, and commissioning required to fit, connect, and activate Products at your premises, carried out by Watten Power or its approved installation partners

"Manufacturer" — the third-party company that designs, produces, and issues the warranty for a Product supplied by Watten Power

"Manufacturer Warranty" — the warranty provided directly by the Manufacturer covering defects in materials or workmanship under normal use conditions, as documented in the product literature supplied with the order

"Order" — your formal request to purchase Products and/or an Installation Service from Watten Power

"Order Confirmation" — our written acceptance of your Order, issued by email, which forms the basis of the binding Contract between you and Watten Power

"Contract" — the legally binding agreement between you and Watten Power formed upon our issue of the Order Confirmation

"Consumer" — a natural person purchasing Products or services wholly or predominantly for personal, domestic, or non-commercial purposes

"Business Customer" — any company, partnership, sole trader, or other entity purchasing Products or services for commercial or professional purposes

2. Watten Power's Role as Supplier and Installer

- 2.1 Watten Power acts as an authorised reseller of products manufactured by third-party brands. As the seller of goods, we are responsible for ensuring that Products supplied to you conform to their description, are of satisfactory quality, and are fit for purpose. These obligations exist independently of, and in addition to, any Manufacturer Warranty.
- 2.2 Watten Power also provides professional installation and commissioning services for the Products we supply. The quality, safety, and regulatory compliance of all installation work is Watten Power's direct responsibility, whether carried out by our own engineers or by approved sub-contractors acting under our supervision.
- 2.3 Watten Power does not manufacture any of the products it supplies. Product warranties — including performance guarantees, output warranties, and materials warranties — are issued by the relevant Manufacturer and are governed by the Manufacturer's own terms. The scope, duration, and claims process for each Manufacturer Warranty will be set out in the product documentation provided with your order.
- 2.4 Where a product issue arises after installation, Watten Power will act as your first point of contact and will support you in determining whether the issue relates to the product itself (a Manufacturer Warranty matter) or to the installation (Watten Power's responsibility), and will take appropriate action accordingly.

Your Point of Contact: Regardless of whether a post-sale issue relates to the product or the installation, always contact Watten Power first at info@wattenpower.com. We will manage the process including any Manufacturer Warranty claim on your behalf.

3. Formation of Contract

- 3.1 Placing an Order constitutes an offer to purchase on the terms of this Agreement. No Contract is formed until we issue a written Order Confirmation by email. Acknowledgement of receipt of your Order does not constitute acceptance.
- 3.2 An Order may cover Products only, an Installation Service only, or a combined supply-and-install package. Where both are included, the Contract covers both elements unless otherwise specified.
- 3.3 We reserve the right to decline any Order at our discretion, including where a product is no longer available from the Manufacturer, where payment cannot be verified, or where the Order contains an error.
- 3.4 By placing an Order, you confirm that all information provided including site details, access requirements, and technical specifications is accurate and complete to the best of your knowledge. Inaccurate information may result in delays, additional charges, or an inability to complete the installation as planned.

4. Product Information and Specifications

- 4.1 All product descriptions, technical datasheets, performance ratings, and compatibility information published by Watten Power are sourced from or based on data provided by the relevant Manufacturer. While we take reasonable steps to ensure accuracy, Watten Power cannot guarantee that all Manufacturer-supplied information is complete or free from error.
- 4.2 Product specifications and availability are subject to change by the Manufacturer at any time and without notice. Where a confirmed Order is affected by a material specification change prior to delivery, we will notify you and discuss the available options.

- 4.3 Product images are for illustrative purposes only and may not reflect minor variations in finish, colour, or physical dimensions that are within normal manufacturing tolerances. Such variations are not considered faults.
- 4.4 Any energy generation estimates, export projections, or financial savings figures referenced during the quotation or ordering process are indicative only, based on published Manufacturer performance data and industry-standard assumptions. Actual performance will depend on site-specific factors. Such figures are not binding contractual guarantees unless expressly confirmed as such in writing in your Order Confirmation.

5. Pricing and Payment

- 5.1 All prices are quoted in pounds sterling (GBP) and include Value Added Tax at the prevailing rate unless expressly stated otherwise.
- 5.2 Where an order includes both Products and an Installation Service, the quotation will itemise these separately so that the cost of each is clear. Delivery and logistics charges, where applicable, will also be shown separately before your Order is confirmed.
- 5.3 Prices are subject to change without prior notice. However, any revision made after an Order Confirmation has been issued will not affect the price agreed in that confirmation.
- 5.4 Full payment for Products is required at the point of purchase. Payment for Installation Services may be structured differently and will be set out in your quotation — for example, with a deposit payable at order and the balance due upon completion. Any agreed payment schedule will be confirmed in writing.
- 5.5 Legal title and ownership of Products passes to you only upon receipt of full payment. Until payment has cleared in full, Products remain the property of Watten Power.
- 5.6 Where an Installation Service encounters unforeseen site conditions such as non-standard wiring, structural issues, or regulatory requirements that could not reasonably have been identified during the quotation process supplementary charges may apply. We will always seek your written authorisation before carrying out any additional work.

6. Delivery of Products

- 6.1 Delivery timescales provided at the point of sale are estimates only. Timescales may be affected by Manufacturer lead times, logistics provider performance, and other factors outside our direct control. We will communicate any significant change to an expected delivery date as soon as we become aware of it.
- 6.2 Delivery will be made to the address confirmed in your Order. Any change to the delivery address following issue of an Order Confirmation must be requested promptly and may not always be possible.
- 6.3 Risk in the Products passes to you at the moment of delivery. Until that point, risk remains with Watten Power.
- 6.4 Upon delivery, you should inspect the Products promptly. Any visible transit damage or discrepancy between the delivered items and your Order should be reported to us within 48 hours of receipt. Please photograph the packaging and any damaged items before moving or opening them where possible.

Installation Scheduling: You are responsible for ensuring that installation appointments are only booked after Products have been confirmed as delivered and inspected. Watten Power accepts no

liability for costs arising from installation bookings made in advance of a confirmed delivery, including abortive visit charges.

7. Installation Services

7.1 Standards and Compliance

All installation work carried out by Watten Power or its approved partners is performed in accordance with applicable UK regulatory standards and industry requirements, including:

- BS 7671 (IET Wiring Regulations, 18th Edition)
- Part P of the Building Regulations (England and Wales)
- MCS (Microgeneration Certification Scheme) standards, where applicable
- G98 and G99 Distribution Network Operator (DNO) connection requirements
- OZEV (Office for Zero Emission Vehicles) standards for EV charge point installations

7.2 Customer Site Responsibilities

To enable a safe and compliant installation, you are responsible for ensuring that:

- the installation site is accessible, prepared, and ready on the agreed date
- any necessary third-party consents, permits, or landlord approvals have been obtained before the installation date
- the existing electrical infrastructure at the premises meets the minimum requirements identified during the pre-installation survey
- a responsible adult is present at the premises throughout the duration of the installation

7.3 Pre-Installation Survey

Where required, Watten Power or its approved partner will carry out a pre-installation survey either remotely or on-site to assess the suitability of your premises. The survey outcome may affect the final specification, cost, or feasibility of the installation. Any changes required as a result of the survey will be communicated to you and agreed in writing before work proceeds.

7.4 Unforeseen Site Conditions

Where circumstances are identified during an installation that could not reasonably have been anticipated during the survey such as degraded wiring, inadequate consumer units, non-standard structural configurations, or DNO requirements we will pause work and contact you to discuss the options. Additional charges may apply for any extra work required, subject to your written approval.

7.5 Installation by Third Parties

Where Products supplied by Watten Power are to be installed by a party other than Watten Power or our approved partners, the following applies:

- Watten Power accepts no responsibility for the quality, safety, or compliance of third-party installation work
- any damage to Products arising during or as a result of third-party installation is not covered under this Agreement or any Manufacturer Warranty
- the Manufacturer Warranty for certain products may be conditional on installation being carried out by a certified professional — please refer to the product documentation for specific requirements

Warranty Condition: Many Manufacturer Warranties require installation to be carried out by a qualified and, in some cases, MCS-certified professional. Installation by unqualified personnel may invalidate the Manufacturer Warranty. Please confirm this with us before appointing a third-party installer.

7.6 Completion and Sign-Off

On completion of the Installation Service, our engineer will carry out commissioning checks to verify that the system is operating correctly. You will be asked to confirm satisfactory completion in writing. Any concerns identified at this stage should be raised before sign-off, as subsequent issues may be subject to a site revisit assessment.

8. Manufacturer Warranties

- 8.1** All Products supplied by Watten Power are accompanied by a Manufacturer Warranty. The scope, duration, and terms of this warranty vary by product and brand and are set out in full in the documentation provided with your order or available on the Manufacturer's website.
- 8.2** Manufacturer Warranties are provided by and remain the responsibility of the respective Manufacturer. Watten Power will support you in making a warranty claim and will liaise with the Manufacturer on your behalf, but the ultimate determination of whether a claim is valid and the form of remedy offered lies with the Manufacturer.
- 8.3** Manufacturer Warranties typically cover defects in materials or workmanship arising under normal operating conditions. They do not generally cover:
- damage resulting from installation by unqualified or non-approved personnel
 - physical damage, misuse, neglect, or exposure to conditions outside the product's rated parameters
 - modifications or repairs carried out without the Manufacturer's written consent
 - damage caused by external events such as power surges, lightning, flood, or grid instability
 - consumable or wear parts subject to normal degradation over time
- 8.4** The Manufacturer Warranty is in addition to, and does not limit or replace, your statutory rights against Watten Power as the seller of the goods under the Consumer Rights Act 2015.
- 8.5** To make a warranty claim, please contact us at info@wattenpower.com with your order number, a description of the issue, supporting photographs, and the product serial number where available. We will acknowledge your claim and begin the process of engaging with the Manufacturer on your behalf.

9. Identifying and Addressing Faults

Because Watten Power both supplies and installs third-party products, it is important to be clear about who is responsible for addressing different types of issue. The table below sets out how faults are categorised and handled:

Situation	Likely Responsibility	How It Is Resolved
Product arrives damaged or is not as described	Watten Power (as seller)	Watten Power arranges replacement or refund. Notify us within 48 hours of delivery
Product fails or underperforms after installation under normal conditions	Manufacturer (via Manufacturer Warranty)	Watten Power raises and manages the warranty claim with the Manufacturer on your behalf
Issue arising from the way the product was installed or commissioned	Watten Power (as installer)	Watten Power returns to site to investigate and remedy at no additional cost
Damage caused by misuse, third-party interference, or environmental events	Customer or third party	Not covered under this Agreement or Manufacturer Warranty; chargeable repair may be available

In all cases, your first point of contact should be Watten Power. We will assess the situation and route the matter appropriately, whether that means resolving it ourselves, engaging the Manufacturer, or advising on next steps.

10. Consumer Right to Cancel

This section applies to Consumers only. Business Customer cancellation rights are addressed in Section 11.

- 10.1** As a Consumer, you have the statutory right to cancel your order within 14 calendar days of the date on which you or a nominated person takes physical delivery of the Products, without providing any reason.
- 10.2** Where your Order includes an Installation Service, you also have the right to cancel the Installation Service within 14 calendar days of the date the Contract was formed. If you request that installation begins within this period and subsequently cancel, you may be charged proportionately for any work already completed.
- 10.3** To exercise your right to cancel, you must notify us clearly in writing at info@wattenpower.com before the 14-day period expires.
- 10.4** Products that have been installed, electrically connected, or commissioned are considered brought into use and are no longer eligible for return under the cooling-off right, regardless of how recently delivery occurred.
- 10.5** Products must be returned to us within 14 days of your cancellation notice, unused and in their original Manufacturer packaging with all accessories and documentation included. You are responsible for the cost of return shipping for non-faulty items. We strongly recommend using a tracked and insured carrier.
- 10.6** Valid refunds will be processed within 14 calendar days of receipt and inspection of the returned goods. Refunds will be made via the original payment method. We may reduce a refund to reflect any diminution in value caused by handling beyond what is necessary to inspect the product.

11. Business Customer Terms

- 11.1 Business Customers do not benefit from statutory cooling-off rights or other consumer protections. Returns, refunds, and credits for Business Customers are subject to our written agreement and the terms set out in our Refunds & Returns Policy.
- 11.2 Business Customers are responsible for ensuring that the installation site meets all applicable technical and regulatory requirements. Where site-related issues cause delays or additional costs, these will be charged to the Business Customer subject to written agreement.
- 11.3 Business Customers wishing to report a product fault or non-conformity must do so in writing within 5 working days of delivery. Failure to notify within this period may affect your ability to seek a remedy for visible defects.
- 11.4 Business Customers retain access to Manufacturer Warranty support through Watten Power on the same basis as Consumers, as described in Section 8.

12. Connected Products and Monitoring

- 12.1 Many Products supplied by Watten Power including solar inverters, battery storage systems, and EV chargers include connectivity features that enable remote monitoring, performance tracking, and firmware updates. These features are provided by the respective Manufacturer through their own platforms or apps.
- 12.2 By using connected product features, you may be required to accept the Manufacturer's own terms of service and privacy policy for that platform. Watten Power is not responsible for the availability, content, or data practices of Manufacturer-operated platforms.
- 12.3 Where Watten Power has access to system performance data for the purposes of installation support, warranty claim management, or diagnostics, such access will be handled in accordance with our Privacy Policy.

13. Limitation of Liability

- 13.1 Nothing in this Agreement excludes or limits Watten Power's liability for death or personal injury caused by our negligence, fraud or fraudulent misrepresentation, or any other liability that cannot be lawfully excluded.
- 13.2 Subject to clause 13.1, and to the fullest extent permitted by law:
 - Watten Power shall not be liable for indirect, special, or consequential losses including loss of profit, loss of anticipated energy savings, business interruption, or loss of data
 - our aggregate liability to Business Customers in respect of any single Order shall not exceed the total value paid for that Order
- 13.3 Watten Power is not liable for defects or failures that are attributable to the design or manufacture of Products, as these fall within the scope of the applicable Manufacturer Warranty. Our liability as seller is limited to matters of product conformity, satisfactory quality, and fitness for purpose as defined under the Consumer Rights Act 2015 and applicable law.
- 13.4 Watten Power accepts no liability for losses arising from the performance or data practices of Manufacturer-operated platforms, apps, or monitoring services associated with connected Products.
- 13.5 We are not liable for delays, abortive visits, or additional costs arising from inaccurate or incomplete site information provided by the customer at the point of ordering or survey.

14. Events Beyond Our Control

- 14.1 Watten Power shall not be in breach of this Agreement, or otherwise liable, for delays or failures caused by circumstances beyond our reasonable control. This includes Manufacturer supply chain disruptions, component shortages, logistics delays, extreme weather, industrial action, changes in law or regulation, and events of pandemic or public health emergency.
- 14.2 We will notify you promptly where such an event affects your Order and will take all reasonable steps to minimise the impact and keep you informed.

15. Intellectual Property

- 15.1 All intellectual property rights in Products including design rights, patents, firmware, embedded software, and Manufacturer branding belong to the respective Manufacturer. Watten Power sells Products under authorised distribution arrangements and does not acquire or transfer any Manufacturer intellectual property to you by virtue of a sale.
- 15.2 Where Products include embedded firmware or software, your right to use that software is governed by the Manufacturer's end-user licence agreement, which will be provided with the product documentation. You must not reverse-engineer, decompile, or modify any product firmware or software.
- 15.3 All intellectual property in Watten Power's own materials including quotation documents, installation designs, and service documentation remains the property of Watten Power.

16. General Provisions

16.1 Governing Law

This Agreement is governed by the laws of England and Wales. Consumers may bring proceedings in the courts of their local UK jurisdiction. Business Customers submit to the exclusive jurisdiction of the courts of England and Wales.

16.2 Entire Agreement

This Agreement, together with our Terms & Conditions of Use, Privacy Policy, Cookie Policy, and Refunds & Returns Policy, constitutes the full agreement between you and Watten Power regarding the sale of Products and provision of Installation Services.

16.3 Severability

If any provision of this Agreement is found to be unenforceable, that provision shall be severed without affecting the validity of the remaining provisions.

16.4 No Waiver

Our failure to enforce any provision of this Agreement on any occasion shall not constitute a waiver of that right.

16.5 Non-Assignment

You may not assign any rights or obligations under this Agreement without our prior written consent. Watten Power may assign its rights freely, including upon any business transfer or restructuring.

16.6 Variation

We may update this Agreement at any time. Orders placed prior to any revision will continue to be governed by the version in force at the time the Order Confirmation was issued.

17. Contact Us

For all enquiries relating to your order, installation, warranty, or any other aspect of our products and services, please contact us:

Watten Power Limited

Office 2, 60 Gold Street

Northampton, NN1 1RS

United Kingdom

Email: info@wattenpower.com

Website: www.wattenpower.com

Telephone: *[To be confirmed]*